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8 YOSHI JAPANESE CUISINE INC.,
9 YOSHI SUSHI & GRILL LLC, YOSHI3 LLC, and
JIN YAO HUANG

Filed
April 10, 2026
Clerk of the Court
Superior Court of CA
County of Santa Clara
24CV428595
By: CRoman



10 **SUPERIOR COURT OF CALIFORNIA, COUNTY OF SANTA CLARA**

11 **UNLIMITED JURISDICTION**

12 CARLOS ROMALDO PAXTO CHEN, *an*
13 *individual*; OSCAR CRUZ GABRIEL, *an*
individual,

14 Plaintiffs,

15 v.

16 YOSHI JAPANESE CUISINE INC, *a California*
17 *Corporation*; YOSHI SUSHI & GRILL LLC, *a*
18 *California limited liability company*; YOSHI
19 LLC, *a California limited liability company*; JIN
YAO HUANG, *an individual*; and DOES 1
20 THROUGH 20, INCLUSIVE,

21 Responding Partys.

Case No. 24CV428595

Assigned to Honorable Charles F. Adams

**STIPULATION REGARDING
DEPOSITION SUBPEONA FOR
PRODUCTION OF BUSINESS RECORDS
TO CHOWBUS, INC.; ~~[PROPOSED]~~
ORDER**

Complaint Filed: January 3, 2024

Trial Date: None Set

1 This Stipulation is entered into by and between Plaintiffs Carlos Romaldo Paxto Chen and
2 Oscar Cruz Gabriel (collectively, “Plaintiffs”) and Defendants Yoshi Japanese Cuisine Inc., Yoshi
3 Sushi & Grill LLC, Yoshi3 LLC, and Jin Yao Huang (collectively, “Defendants”), by and through
4 their counsel, and are collectively referred to herein as the “Parties.”

5 **RECITALS**

6 1. WHEREAS, on or about March 12, 2026, Plaintiffs served a deposition subpoena for
7 the production of business records on nonparty Chowbus, Inc. (“Chowbus”) seeking, among other
8 things, account records, admin access logs, modification histories, audit trails, time entries, manuals,
9 user guides, user rosters, and user identification information for all employees of Defendants Yoshi
10 Japanese Cuisine Inc., Yoshi3 LLC, and Yoshi Sushi & Grill LLC from November 2022 to the
11 present (the “Subpoena”);

12 2. WHEREAS, the production date set forth in the Subpoena is April 13, 2026 (the
13 “Production Date”);

14 3. WHEREAS, Defendants contend that the Subpoena, as drafted, is overbroad as to
15 scope, seeks information beyond ordinary time and payroll records, and seeks materials that are not
16 proportional to the needs of the case, including third-party vendor records, technical materials, and
17 other categories of information not necessary to the claims or defenses at issue;

18 4. WHEREAS, Plaintiffs contend that the Subpoena, with appropriate limitations, seeks
19 relevant information concerning employee time entries and any related modification history;

20 5. WHEREAS, the Parties have met and conferred regarding the scope of the Subpoena
21 and wish to narrow the issues in dispute, avoid unnecessary burden and expense, and preserve any
22 information that may be relevant to the claims and defenses in this action; and

23 6. WHEREAS, after meeting and conferring, the Parties have agreed to a compromise
24 in order to avoid the need for motion practice, subject to the terms set forth below.

25 **NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED** by and between
26 the undersigned counsel, on behalf of the Parties, as follows:

27 7. Plaintiffs agree that they will not enforce the Subpoena as originally served.

28 8. Within one (1) business day after execution of this Stipulation, Plaintiffs shall

1 provide written notice to Chowbus, and to the deposition officer, that compliance with the Subpoena
2 as originally served is suspended, that no production shall be made except in accordance with the
3 narrowed scope set forth in this Stipulation, and that the Subpoena shall otherwise be deemed
4 satisfied upon compliance with this Stipulation.

5 9. Any production by Chowbus pursuant to this Stipulation shall be limited to records
6 concerning employees of Defendants Yoshi Japanese Cuisine Inc., Yoshi3 LLC, and Yoshi Sushi
7 & Grill LLC whose time entries were maintained in the Chowbus system during the period from
8 November 1, 2022 through the date of production, and only for periods during which the relevant
9 Defendant entity maintained employee time entries in the Chowbus system.

10 10. Subject to the limitations set forth herein, any production by Chowbus shall be
11 limited to employee timekeeping records, including clock-in times, clock-out times, meal-period
12 punches, rest-period punches if tracked, shift entries, and other employee time-entry fields ordinarily
13 maintained in the Chowbus timekeeping system.

14 11. Subject to the limitations set forth herein, any production by Chowbus may also
15 include any audit trail, modification history, or similar metadata, if maintained by Chowbus in the
16 ordinary course of business and reasonably accessible, reflecting the creation, modification,
17 deletion, approval, or adjustment of employee time entries, limited to: the employee identifier; the
18 date of the time entry or shift; the action taken; the field or fields changed; the pre-change and post-
19 change values, if maintained; the date and time of the action; and the user or account name, or
20 account identifier, associated with that action, if maintained.

21 12. To the extent necessary to interpret records produced under paragraph 11, Chowbus
22 may produce a limited legend or roster sufficient to identify the person, role, or account name
23 corresponding to any user or account identifier appearing in the produced time-entry audit trail or
24 modification history. Nothing in this Stipulation requires Chowbus to produce employee names or
25 other employee-identifying information beyond what is necessary to interpret the produced records.

26 13. Plaintiffs agree that the following categories are excluded from production and will
27 not be sought from Chowbus under the Subpoena as narrowed by this Stipulation: customer-
28 identifying information, customer contact information, payment information, and records relating

1 solely to customer orders, purchases, or transactions.

2 14. Plaintiffs further agree that point-of-sale transaction data is excluded from
3 production at this time, without prejudice to Plaintiff later raising a targeted request if an actual
4 dispute regarding hours of operation arises, after the Parties first meet and confer regarding less
5 intrusive, non-customer sources of that information.

6 15. Plaintiffs further agree that general user manuals, installation guides, system
7 specifications, training materials, and other broad vendor documentation are excluded from
8 production, except as provided in paragraph 16 below.

9 16. If records produced by Chowbus contain unclear field names, codes, labels,
10 abbreviations, or report headers, the Parties shall meet and confer regarding production of only a
11 limited field legend, report key, data dictionary, or narrowly tailored excerpts from vendor
12 documentation sufficient solely to interpret the specific produced fields.

13 17. Plaintiffs further agree that source code, database schemas, system architecture
14 materials, product design materials, internal technical documentation, passwords, security
15 credentials, API keys, tokens, secret keys, or similar security information are excluded from
16 production.

17 18. In addition, to the extent not already captured in records produced under Paragraph
18 11, any device, session, or IP-address information already appearing within the same audit trail or
19 modification history record produced under paragraph 11 shall be produced. Generalized login
20 records, session logs, device logs, IP logs, and admin logs not directly tied to a specific produced
21 time-entry action remain excluded from production.

22 19. Plaintiffs further agree that general account-management records, billing records,
23 subscription records, full user rosters, identification-code lists, and other broad user-access materials
24 are excluded from production, except as expressly permitted by paragraph 12.

25 20. Plaintiffs further agree that personal identifying information not necessary to
26 interpret produced timekeeping records, including Social Security numbers, driver's license
27 numbers, dates of birth, home addresses, personal telephone numbers, personal email addresses, and
28 financial account information, are excluded from production.

1 21. Any production by Chowbus may be made in a reasonably usable export, report,
2 spreadsheet, PDF, or other ordinary-course business-record format. Nothing in this Stipulation
3 requires Chowbus to produce raw database tables, source code, or data in more than one form.

4 22. If Chowbus contends that any information otherwise described herein is not
5 maintained, no longer exists, or is not reasonably accessible because of undue burden or expense,
6 Chowbus may so state in writing and/or by declaration identifying the category of information at
7 issue and the basis for that contention, and the Parties shall meet and confer regarding that category
8 before seeking court intervention. If Chowbus contends that session, device, or IP address
9 information is not produced under Paragraphs 11 or 18, its writing and/or declaration shall also state
10 whether such information is captured within per-action audit trail records, maintained separately, or
11 not maintained at all.

12 23. Any production by Chowbus pursuant to this Stipulation shall be subject to the
13 existing protective order in this action, and Chowbus may designate any produced materials at the
14 confidentiality level it reasonably believes applies under that protective order.

15 24. Except as expressly provided herein, by entering into this Stipulation, Defendants do
16 not concede that any category of information sought from Chowbus is relevant, discoverable, or
17 admissible, and all objections are otherwise preserved.

18 25. If Plaintiffs do not timely provide the written notice described in paragraph 8, or if
19 Chowbus indicates that it may produce materials under the Subpoena as originally served
20 notwithstanding this Stipulation, Defendants reserve all rights to seek relief from the Court,
21 including an order quashing, modifying, or staying compliance with the Subpoena.

22 26. Except as otherwise expressly provided in this Stipulation, compliance by Chowbus
23 with this Stipulation shall fully satisfy the Subpoena, and Plaintiffs shall not seek to enforce the
24 Subpoena as originally served. Any request for additional records from Chowbus shall be made only
25 as permitted by this Stipulation or by further order of the Court.

26 27. If Chowbus produces records outside the scope of this Stipulation, Plaintiffs shall
27 promptly notify Defendants and shall not use, disclose, or distribute such records pending further
28 meet and confer. The Parties shall meet and confer regarding the return, destruction, or sequestration

1 of any such records.

2 **IT IS SO STIPULATED.**

3
4
5
6 Dated: April 8, 2026

T.P. Skinner

7 By: _____

8 T.P. Skinner

Alexander S. Rusnak

9 Attorneys for Plaintiffs

10 CARLOS ROMALDO PAXTO CHEN

11 and OSCAR CRUZ GABRIEL.

12
13 Dated: April 8, 2026

14 By: _____

15 Tyler M. Paetkau

Kathy Hyunh

16 Attorneys for Defendants

17 YOSHI JAPANESE CUISINE INC.,

18 YOSHI SUSHI & GRILL LLC, YOSHI3 LLC, and

19 JIN YAO HUANG

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~~PROPOSED~~ ORDER

GOOD CAUSE APPEARING, the Court hereby approves the Parties' Stipulation Regarding Third-Party Subpoena to Chowbus, Inc., and the Stipulation is adopted as an Order of the Court.

IT IS ORDERED

April 9, 2026
DATED: ____



Judge Beth McGowen

Judge of the Superior Court

1 **PROOF OF SERVICE**

2 *Chen v. Yoshi, et al.*

3 Superior Court Case No. 24CV428595

4 I am a citizen of the United States and employed in Los Angeles, California. I am over the
5 age of eighteen years and not a party to the within-entitled action. My business address is 2995
6 Woodside Road, Suite 400-467, Woodside, CA 94062. On April 8, 2026, I served a copy of the
7 within document(s):

8 **STIPULATION REGARDING DEPOSITION SUBPEONA FOR PRODUCTION OF
9 BUSINESS RECORDS TO CHOWBUS, INC.; [PROPOSED] ORDER**

10 as follows:

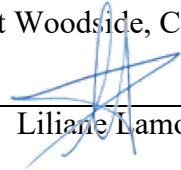
- 11 ☐ by sealing the document(s) listed above in an envelope and placing it for collection,
12 which would, in the ordinary course of business, be deposited with the United States
13 Postal Service on this date for delivery to the person(s) at the address(es) set forth
14 below. by sealing the document(s) listed above in an envelope and placing it for
15 collection, which would, in the ordinary course of business, be deposited with the
16 United States Postal Service on this date for delivery to the person(s) at the
17 address(es) set forth below.
- 18 ☐ by sealing the document(s) listed above in an envelope and causing them to be
19 personally delivered via courier to the person(s) at the address(es) set forth below.
- 20 ☐ by sealing the document(s) listed above in a FEDEX envelope/box and placing it for
21 collection, which would, in the ordinary course of business, be deposited with
22 FEDEX for delivery to the person(s) at the address(es) set forth below.
- 23 ☒ by emailing a true and correct copy of the document(s) listed to the person(s) at the
24 email address(es) set forth below.

25 T.P. Skinner (SBN 297710)
26 Skinner Law Group APC
27 1654 The Alameda, Suite 100
28 San Jose, CA 95126
Telephone: 408-813-9240
tom@skinnerlawgroupca.com

Attorneys for Plaintiff

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Rusnak Law Office
1001 Molalla Ave. Suite 221
Oregon City, OR 97045
Telephone: 408-780-9835
arusnak@rusnaklawoffice.com

25 I declare under penalty of perjury under the laws of the State of California that the foregoing
26 is true and correct. Executed on Wednesday, April 8, 2026, at Woodside, California.

27 
28 Liliane Lamotte